

Rasmus A. K. Bogetoft

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SUMMARY

I am a Tenure-Track Assistant Professor of Law at the University of Copenhagen. My research lies at the intersection of Private Law and Law and Economics, with a focus on contracts, torts, civil procedure, and the quantification of damages in complex commercial cases. My work applies economic theory and methods to questions of legal reasoning. I publish under Rasmus Arler Bogetoft, Rasmus Arler Kamstrup Bogetoft, Rasmus Kamstrup Bogetoft, and Rasmus A. K. Bogetoft.

EDUCATION

- Ph.D. — Copenhagen Business School 2022
- Attorney-at-Law — Danish Bar 2018
- Candidatus Juris — University of Copenhagen 2015
- Visiting Student — Yale University 2012–2014

ACADEMIC POSITIONS

- Tenure Track Assistant Professor — Faculty of Law, University of Copenhagen
Parental leave: full calendar year 2025 2022–Present
- Postdoc — Faculty of Law, University of Copenhagen
Researched the project *Safeguarding Competition and Equal Access to Central Purchasing Bodies' Agreements* 2022–2023
- Ph.D. Student — Copenhagen Business School
Dissertation: “Rettighedshavers faktisk lidte tab i immaterialretssager – studier i dansk ret med støtte i økonomisk teori og metode”.
Supervisors: Henrik Lando (primary), Thomas Riis, Kim Østergaard 2018–2022

NON-ACADEMIC POSITIONS

- Attorney-at-Law / Assistant Attorney / Student Assistant — Plesner Law Firm 2010–2018

VISITING POSITIONS / RESEARCH STAYS

- Fellow — The Danish Academy, Rome, IT Spring 2023

- Visiting Researcher — University of Tor Vergata, Department of Economics, Rome, IT
Academic contact: Gustavo Piga

Spring 2023

- Visiting Researcher — Berkeley School of Law, Berkeley, USA
Academic contact: Aaron Edlin

2019–2020

SELECTED PUBLICATIONS

1. Bogetoft, Rasmus Arler and Peter Bogetoft. 2022. “Market Entrance Patents and Preliminary Injunctions: A Model of Pharmaceutical Patent Litigation.” *European Journal of Law and Economics* 53(3): 379–423. [DOI](#) · [SSRN](#)
2. Bogetoft, Rasmus Arler. 2021. “Substitutionsfaktoren og produktforskelle” (The Substitution Factor and Product Differentiation in IP Damages Assessment). *Tidsskrift for Rettsvitenskap* 134(5): 563–634. [DOI](#) · [PDF](#)
3. Bogetoft, Rasmus Arler. 2020. “Er en dom et bedre præjudikat hvis den har flere citationer?” (Is a Judgment a Better Precedent If It Has More Citations?). *Tidsskrift for Rettsvitenskap* 133: 117–60. [DOI](#) · [SSRN](#)
4. Ghafele, R. and R. K. Bogetoft. 2018. “Using Patent Valuation Methods to Assess Damages in Patent Infringement Cases under the Unified Patent Court.” *World Patent Information* 52. [DOI](#) · [SSRN](#)

FULL LIST OF PUBLICATIONS

1. Bogetoft, Rasmus A. K. (2024). “The Trade-off between Preferences and Prices in Framework Agreements: Exploring a Simple Model.” In *Public Procurement – Centralisation and New Trends*, edited by Carina Risvig Hamer, Magdalena Socha, and Kirsi-Maria Halonen. 1st ed. Copenhagen: Djøf Forlag. [Publisher](#) · [SSRN](#)
2. Bogetoft, Rasmus A. K. and Magdalena Socha (2024). “A Menu of Contracts: Using Framework Agreements to Create Flexibility of Choice.” In *Public Procurement – Centralisation and New Trends*, edited by Carina Risvig Hamer, Magdalena Socha, and Kirsi-Maria Halonen. 1st ed. Copenhagen: Djøf Forlag. [Publisher](#) · [SSRN](#)
3. Korsgaard, Rasmus and Rasmus Arler Kamstrup Bogetoft (2023). “Udmåling af sagsomkostninger i immaterialretssager” (Assessment of Litigation Costs in Intellectual Property Cases). *Ugeskrift for Retsvæsen*, U 2023B.167. [Karnov](#) · [PDF](#)
4. Bogetoft, Rasmus Arler (2022). “Ligheder og forskelle” (Similarities and Differences: An Economic Analysis of Five Product Imitation Cases). *Tidsskrift for Rettsvitenskap* 135(5): 543–592. [DOI](#) · [PDF](#)
5. Bogetoft, Rasmus Arler and Rasmus Horskjær Nielsen (2022). “Erstatning til forbigået tilbudsgiver” (Damages for Bypassed Tenderers: Trends in Danish Procurement Case Law). *Juristen* 2022(4/5): 162–173. [Publisher](#) · [PDF](#)
6. Bogetoft, Rasmus Arler (2022). “Statistiske perspektiver på erstatning for yderligere skade ved immaterialretskrænkelser” (Statistical Perspectives on Damages for Additional Harm in IP Infringement Cases). *Nordiskt Immaterielt Rättsskydd* 1: 36–89. [Journal](#) · [PDF](#)

7. Bogetoft, Rasmus Arler (2022). *Rettighedshavers faktisk lidte tab i immaterialretssager* (The Right Holder's Actual Loss in IP Cases). Ph.D. thesis, Copenhagen Business School. [CBS Research Portal](#)
8. Bogetoft, Rasmus Arler and Peter Bogetoft (2022). "Market Entrance Patents and Preliminary Injunctions: A Model of Pharmaceutical Patent Litigation." *European Journal of Law and Economics* 53(3): 379–423. [DOI](#) · [SSRN](#)
9. Bogetoft, Rasmus Arler (2021). "Substitutions- og præferenceskade" (Substitution and Preference Damage). *Nordiskt Immaterielt Rättsskydd* 4: 391–417. [Journal](#) · [PDF](#)
10. Bogetoft, Rasmus Arler (2021). "Substitutionsfaktoren og produktforskelle" (The Substitution Factor and Product Differentiation in IP Damages Assessment). *Tidsskrift for Rettsvitenskap* 134(5): 563–634. [DOI](#) · [PDF](#)
11. Bogetoft, Rasmus Arler (2021). "Financing Patent Litigation through Market Entrance." Copenhagen Business School (working paper). [SSRN](#)
12. Bogetoft, Rasmus Arler (2020). "Er en dom et bedre præjudikat hvis den har flere citationer?" (Is a Judgment a Better Precedent If It Has More Citations?). *Tidsskrift for Rettsvitenskap* 133: 117–160. [DOI](#) · [SSRN](#)
13. Ghafele, Roya and Rasmus Kamstrup Bogetoft (2018). "Using Patent Valuation Methods to Assess Damages in Patent Infringement Cases under the Unified Patent Court." *World Patent Information* 52. [DOI](#) · [SSRN](#)
14. Madsen, Klaus Ewald Nicolaj Bording, Mikkel Vittrup, Andreas Poul Cederholm, Armin Sarvan, and Rasmus Kamstrup Bogetoft (2017). "AIPPI National Report for Study Regarding the Quantification of Monetary Relief 2017."
15. Bogetoft, Rasmus Kamstrup (2015). *Udmåling af det rimelige vederlag* (Assessing the Reasonable Royalty in Danish IP Law). Master's thesis, University of Copenhagen. [University Repository](#)

GRANTS AND FUNDING

- Elite Research Travel Grant (Eliteforsk Rejsestipendium) 2020
- Oberstløjtnant Max Nørgaard og Hustru Magda Nørgaards Legat 2020
- Reinholdt W. Jorck og Hustrus Fond 2019
- Other Grants (Otto Mønsted Fond; Oticon Fonden; Augustinus Fonden; Christian og Ottilia Brorsons rejselegat) 2019–2020

TEACHING EXPERIENCE

PH.D. COURSES

- *Law and Economics (short course)* — University of Copenhagen, Copenhagen November 2024

- *Cumulative Legal Science (full-day seminar)* — University of Copenhagen, Copenhagen
July 2024
- *Economic Perspectives on Liquidated Damages* — University of Oslo, Oslo
November 2024

MASTER'S COURSES

- *Public Procurement Law (seminar)* — University of Copenhagen, Copenhagen
2022
- *Law and Economics (seminars)* — Copenhagen Business School, Copenhagen
2021–2022
- *EU Internet Law (lectures and supervision)* — Copenhagen Business School, Copenhagen
2016–2022

BACHELOR'S COURSES

- *Torts and Contracts (seminars)* — University of Copenhagen, Copenhagen
Co-course coordinator (co-fagansvarlig): 2026–Present
2023–Present

SUPERVISION

- Bachelor's and Master's Theses — University of Copenhagen
2018–Present

PROFESSIONAL SERVICE

- Elected Member — Strategy Realization Group: *An Innovative and Solution-Oriented University*, University of Copenhagen
2026–Present
- Member — PhD Committee, Faculty of Law, University of Copenhagen
2026–Present
- Co-founder and Organizer — Nordic Forum for Law and Economics (Nordics)
2024–Present
- Founder and Organizer — Working-in-Progress Seminar Series, Center for Commercial and Public Law (CEO), University of Copenhagen
2024–Present
- Co-founder and Organizer — Network for External Funding, Center for Commercial and Public Law (CEO), University of Copenhagen
2024–Present
- Co-founder and Organizer — Network for Tenure Track Assistant Professors, Faculty of Law, University of Copenhagen
2022–Present
- Member — Research Group on the Dogmatic Method (DOGME), Faculty of Law, University of Copenhagen
2024–Present
- Member — Research Group on Advanced Legal Methods, Faculty of Law, University of Copenhagen
2022–Present

VOLUNTEER WORK

- Concept Developer and Organizer — Law Shifters
2015–2019
- Organizer and Role Model — Nørrebro Park School Project
2016–2019
- YouTube Manager / Role Model / Presenter — Danish Students Abroad
2013–2015

PRESENTATIONS

- *Using Economics as a Tool in Doctrinal Analysis* — University of Chicago Law School, Chicago
PLANNED October 2026
- *Liquidated Damages and Value Creation** — Copenhagen Business School, Copenhagen
Invited talk as part of [Værdimaksimering og retsdogmatik i privatretten](#)
3 September 2026
- *Economic Perspectives on Tort Law* — Juridisk Diskussionsklub, University of Copenhagen, Copenhagen
Invited talk as part of a theme week on tort law
26 February 2026
- *Using Economics as a Tool in Doctrinal Analysis* — Nordic Forum for Law and Economics, Copenhagen
16 December 2025
- *The Regulation of Liquidated Damages* — University of Oslo, Faculty of Law, Oslo
19 April 2025
- *A Theory of Adverse Inferences* — Young Scholars Seminar, Chicago Law School, Chicago
10 October 2024
- *On the Regulation of Liquidated Damages in Nordic Law: A New Perspective* — Annual Meeting of the German Law and Economics Association, Hamburg
18 July 2024
- *Working paper on the regulation of liquidated damages* — CEO Work-in-Progress Seminar Series, Faculty of Law, University of Copenhagen, Copenhagen
27 February 2024
- *Working paper on Contra Proferentem in Nordic Contract Law* — UNIDROIT, Rome
15 December 2023
- *Working paper on the regulation of liquidated damages* — Copenhagen Business School, Copenhagen
25 October 2023
- *Thoughts on flexibility and measurability in law* — The Danish Academy in Rome, Rome
12 July 2023
- *Working paper on the trade-off between flexibility and competition in centralized public procurement* — CPB Conference, Copenhagen, DK
26 April 2023

- *Findings from “Damages in Public Procurement Matters”* — Lundgrens Law Firm, Copenhagen
15 December 2022
- *Main findings from my Ph.D. thesis* — Network for In-House Counsel, Copenhagen
7 December 2022
- *Findings from “Damages in Public Procurement Matters”* — Danish Network for Public Procurement, Copenhagen
25 October 2022
- *Main findings from my Ph.D. thesis* — Danish Delegation of AIPPI, Copenhagen
26 April 2022
- *Main findings from my Ph.D. thesis* — Bird & Bird Law Firm, Copenhagen
22 April 2022
- *Statistical tools to assess damages for IPR infringements* — The Danish Maritime and Commercial High Court, Copenhagen
23 February 2022
- *Findings from the paper on statistical tools to assess damages for IPR infringements* — Plesner Law Firm, Copenhagen
1 October 2021
- *Working paper on statistical tools to assess damages for IPR infringements* — Network for Commercial Litigation and Arbitration (DJØF), Copenhagen
22 October 2020
- *Findings from the paper on patent valuation methods to calculate damages in IPR matters* — Cambridge Information and Intellectual Property Annual Meeting, Cambridge
11 July 2018
- *Findings from the paper on patent valuation methods to calculate damages* — Oxfirst Seminar on Damages Awards & Economics of Legal Remedies in German Patent Law, Munich
2 July 2018
- *Assessing Damages under the IPR Enforcement Directive* — Webinar (with Dr. Roya Ghafele)
17 May 2017
- *Scandinavian Seminars in Law and Economics* — Copenhagen Business School, Copenhagen
August 2014 and 2015
- *Presentation of working paper: “The Danish Preliminary Injunction Doctrine”* — Copenhagen Business School, Copenhagen
15 September 2014

*Presentation in Danish.

Last updated: September 4, 2026